

To:

365 TRAVEL

Ms Hoang Thi Mai Huong
Contract Director
Room 707, Thanh Cong Building,
57 Lang Ha Street,
Ba Dinh Dis. Ha Noi
04 3835 4899

Dear Ms Hoang Thi Mai Huong,

Greetings from InterContinental Saigon!

Thank you for your interest in the InterContinental Saigon. Voted Asia's Leading City Hotel 2015 for the second consecutive year and Vietnam's Leading Conference Hotel 2015 for the fourth consecutive year, we are very proud of our reputation as one of the leading conference venues in the country.

We would like to present our 2018 rates structure for your perusal and trustfully as attached file. We do hope you will continue to support us in the next coming season.

Thank you for your tremendous support and we look forward to working with you and your organization more closely in the next season. Appreciate if you can return the signed copies to us by **Sep 30,2017**

Please do contact us for any further information or assistance as soon as possible.

Kind regards,

Peter Edholm(Mr.)

Director of Sales & Marketing

INTERCONTINENTAL SAIGON

Awarded

- Best Business Hotel in Ho Chi Minh City 2013 by Ho Chi Minh City Dept of Culture, Sport & Tourism.
- Asia's leading city hotel 2015 for the second consecutive year by world travel awards
- Vietnam's leading conference hotel 2015 for the fourth consecutive year by world travel awards
- Top 25 best hotels in Vietnam by 2015 Tripadvisor travellers' choice
- Top 10 best hotels in ho chi minh city 2015 by 2015 Tripadvisor travellers' choice
- Best mice hotel 2015 by ho chi minh city department of culture, sports and tourism
- Best luxury hotel spa in vietnam2015 by world luxury spa awards
- Luxury hotel with best mice services in HCMC by the guide awards 2014 -2015.

InterContinental Saigon

Corner Hai Ba Trung St. & Le Duan Blvd, District 1, Ho Chi Minh City, Vietnam

Tel: +84 8 3520 9999 Fax: +84 8 3520 9955 www.intercontinental.com/saigon

365 TRAVEL

(Effective from 03 January 2018 until 02 January 2019)

This agreement (the "Agreement"), effective from **03 January 2018** ("Effective Date"), is entered between **SAIGON BOULEVARD COMPLEX COMPANY LIMITED** and **365 TRAVEL**. In consideration of the mutual promises contained herein and for other good and valuable consideration, the parties agree as follows:

Room Type	Low Season Apr 1 – Sep 30, 2018	High Season Jan 03-Mar 31, 2018 Oct 1 – Jan 2, 2019
Deluxe Room	VND4,176,000	VND 4,640,000
Club Deluxe Room	VND 5,800,000	VND6,496,000

Notes

- Rates are applicable for single/double occupancy and based on per night stay.
- Above rates are VND, non commissionable and include 5% service charge and 10% taxes.
- Above rates include American Breakfast Buffet at Market 39 restaurant.
- Above rate are not applicable to M.I.C.E. groups, Corporate Accounts or Exhibition delegates.
- **365 TRAVEL** is not allowed to provide wholesale rates to online providers for onward sale to the general public. You will be in breach of our contract and must stop immediately or the hotel can cease providing wholesale rates to you immediately. In case of online sale, **365 TRAVEL** must guarantee that the selling rates will not be lower than the rates displayed by the hotel on the hotel's main website www.ihg.com at any time. Shall the hotel discover a case that does not comply with the above; the lost revenue will be charged in full to **365 TRAVEL**.
- Providing wholesale rates to online providers for onward sales to the general public will lead to breaching Hotel's Best Price Guarantee policy

Early Bird Promotion for summer stay from April 29, 2018 to September 30, 2018

- 30 days: 25% discount on contracted rate

Extra person	Additional charges
Baby cot for infant	Complimentary – subject to availability
Up to 1 child under 12 yrs old sharing room and existing bedding with parents	Complimentary, room only
Extra bed and breakfast inclusive	VND 1.392.000nett

Children Policy	Rates (per person)
Breakfast for Child (below 6 yrs old)	Complimentary
Breakfast for Child (6-12 yrs old)	VND 372.000nett
Breakfast for Child above 12 yrs old	VND 534.000nett

Half board option	Rates (per person)
Market 39 Restaurant	
Buffet Lunch - Food only	From 657.000nett

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Buffet Dinner	From 1.098.000nett
Sunday Brunch	From VND 1.617.000nett
Yu Chu Restaurant	
Set menu (minimum 10 pax) – Food only	From 1.026.000nett

Note

- The above meal rates are not applicable for festive season and public holidays
- Rates for buffet dinner and Sunday brunch are inclusive of free flow of soft drink, local beer and house wine
- The children below 12 yrs old: 50% off from above meal rates quoted
- All rates are quoted nett, non-commissionable, in **VND**, inclusive of 5% service charge and 10% VAT

Club InterContinental privileges

- Breakfast from 6.00am to 10.30am at Club InterContinental Lounge or Market 39
- Afternoon tea from 2.00pm to 5.00pm at Club InterContinental Lounge
- Evening drinks from 5.30pm to 7.30pm with a great selection of canapés, beverages and special wine of the month at Club InterContinental Lounge
- Fresh juices, soft drinks, mineral water, coffee and tea available throughout the day and evening at Club InterContinental Lounge
- Use of internet in your room and at Club InterContinental Lounge
- Pressing of two garments upon arrival
- 25% discount on all laundry services
- Two hours usage of the Club InterContinental meeting room for maximum 8 people per stay (subject to availability)

Terms & Conditions

1. **Term:** This Agreement is effective from the Effective Date noted above from **03 January 2018** until **02 January 2019** unless earlier terminated in accordance with this Agreement.
2. **Termination:** This agreement can be terminated by either party, without penalty, for any reason upon thirty (30) days prior written notification to the other party. Termination of this Agreement shall not extinguish the rights or obligations of the parties hereunder with respect to indemnification, trademarks, ownership and disposition of information, confidentiality, and accounting. Hotel reserves the right to terminate this agreement immediately on written notification to Tour Operator for any reason stated below:
 - Misuse any trademark or services of the Hotel or misrepresent the Hotel in any manner that may cause damage to the image of the Hotel
 - Act in a manner that provides the hotel with a reasonable basis to believe that the Tour Operator cannot or will not perform its financial obligations in a timely manner
 - Act in a manner, including but not limited to the booking of groups, which reflects materially and unfavorably upon the goodwill of the brand, or the operation and reputation of the hotel and/or IHG system
3. **Hotel Rooms and Rates**
Rates offered are for individual bookings up to 9 (nine) rooms. For group bookings of 10 rooms and above, group rates shall apply and will be quoted separately based on availability.
4. **Close Out Dates / Special Event**

Supplements or close out dates to be informed to Tour Operator 14 (fourteen) days prior to arrival date. Split season reservations, arriving within different seasons as noted will be charged per day according to the agreed rates.

5. Reservations

All reservations must be made in writing via fax or e-mail with all necessary details (guest names, flight number or check-in time, double bed or twin beds, smoking or non-smoking room, or any special request) directly to our Reservations department.

6. Check in / Check out policy:

Check in time: **15:00h**

Check out time: **12:00h**

Early check in: Before 10:00h at 100% room charge; After 10:00h at 50% room charge

Late check out: Before 18:00h at 50% room charge; After 18:00h at 100% room charge

7. Allocation

If the pick-up of the agreed room allocation consistently falls below 60% during a period of three or more months, Hotel reserves the right to reduce the number of room allotment to Tour Operator.

The hotel reserves the right to reduce/cancel the room allocation for certain periods; under the condition that hotel sends in writing a close-out notification in advance and honors the reservations on hand with the tour operator.

8. Cancellations and No Shows

All cancellations must be received in writing by the hotel

- FIT bookings: applicable charges for cancellation made
- 72 hours prior to the arrival date: 50% of one-night room rate will be charged for each room cancelled.
- From 48 hours till on day of arrival: 100% of one-night room rate will be charged for each room cancelled.
- From 16 hours on day of arrival and no-show: 100% of the entire stay will be charged for each room cancelled.
- Meal arrangements: cancellation within 12 hours of booking and no-show: 100% penalty charge will apply

9. Payment

The two parties acknowledge and agree that Tour Operator's travelers may be traveling pursuant to a voucher program, whereby the traveler will produce a travel package voucher upon check-in. Vouchers submitted by Tour Operator's travelers shall be delivered by Hotel to Tour Operator. Tour Operator agrees to make payment for such vouchers received from Hotel within 30 days after receipt of such vouchers and Hotel's invoice. Travelers will be responsible for their own incidental charges. Tour Operator will not be held responsible for payment of any incidental charges incurred. Upon check out, Tour Operator's travelers should be presented with blind folios (i.e., room and tax shall be billed directly to Tour Operator, and NOT presented to Tour Operator's traveler). Incidentals should be handled on a separate bill that can be presented to the traveler.

Pre-payment. Unless credit facilities have been approved under separate agreement or prior arrangements made direct with the Hotel, full prepayment of all reservations must be received at

least prior to arrival of all guests. Fourteen (14) days prior to arrival, a deposit equal to the first night's accommodation is required for total accommodation and confirmed meal requirements.

Direct Billing Account. All accounts' credit status will be reviewed on a yearly basis. Therefore, any organization requesting direct bill will be required to submit a completed credit application at the time of contracting or contracting renewal. Until the appropriate credit approval has been sent to Tour Operator by Hotel, Hotel must receive 100% prepayment for all reservations fourteen (14) days prior to arrival. Hotel reserves the right to deny credit. If credit is granted, Hotel must receive payment in full, net 30 days from receipt of invoices. If payments are not received in a timely manner, Hotel may revoke the Tour Operator's credit standing. Late payments accrue interest at the highest rate permitted by the law of the state in which the Hotel is located. The hotel reserves the right to release all space held for current and forward bookings. Non-compliance with specific trading terms may result in contract rates being revoked.

10. **Marketing Materials – Trademarks**

Hotel agrees to provide to Tour Operator promotional materials regarding the Hotel information and photos. Hotel hereby grants to Tour Operator a non-exclusive, limited, revocable, worldwide license to duplicate, display, distribute and otherwise use such promotional materials and the brand name and logo with which Hotel is affiliated (but only in conjunction with the full, official name of the Hotel as contained in the IHG Worldwide Hotel Directory or in IHG's HOLIDEX[®] Plus reservations system) for the purposes of promoting the Hotel and selling reservations for the Hotel Rooms in furtherance of this Agreement. Tour Operator must obtain written approval from Hotel for each proposed use of such promotional materials or trademarks. Hotel may limit or deny any proposed use or revoke any ongoing use in its discretion.

No other use of any IHG trademark, service mark, trade name or logo ("the Marks") may be made without prior written approval of IHG, the owner of the Marks. Tour Operator shall have no right to use any of the intellectual property owned by IHG, its parents, subsidiaries, or its affiliates, including without limitation, trademarks, service marks, or copyrights, except with the prior written approval of IHG. Tour Operator acquires no rights in any such intellectual property. All usage shall inure to the benefit of IHG. Tour Operator further agrees to include the proper trademark, service mark, registration, and copyright symbols on all uses, as provided to Tour Operator in the promotional materials from Hotel.

11. **Predatory Advertising**

The Tour Operator shall not use, and shall prohibit all web sites within its control from using, any predatory advertising methods designed to generate traffic from IHG sites, or any other sites that exclusively promote IHG brands, for which Tour Operator has no contractual rights for the online promotion of any products or services other than IHG hotels. A predatory advertising method is an advertising method that creates or overlays links or banners on web sites, spawns browser windows, or utilizes any other method to generate traffic from a web site without that web site owner's knowledge, permission, and participation.

12. **Opacity**

Unpublished rates are offered to Tour Operator expressly and solely for wholesale use and must be "bundled" with another travel component, such as car rental, airfare, or tour package.

13. **Indemnification**

The Tour Operator will indemnify and hold harmless Hotel, its owner and manager, and their parents, divisions, subsidiaries, brands, and affiliates, and their officers, directors, employees, agents, successors and assigns ("Hotel") against, and hold them harmless from, and promptly reimburse them for all costs and expenses (including, without limitation, all settlements, judgments, fines, damages, legal fees, court costs, expert fees, etc.) by reason of any claim, demand, tax, penalty or judicial or administrative proceeding or investigation (even where negligence of Hotel is also alleged) arising from any product or service provided by the Tour Operator, its parent, subsidiaries, licensees, affiliates, and suppliers, and their respective

officers, directors, employees, agents, successors, and assigns ("Tour Operator"); any failure to perform or breach of this Agreement by the Tour Operator; any injury or damage whether to person or property, sustained by any person as a result of the alleged acts or omissions of the Tour Operator; or, any and all claims alleging violation of Tour Operator's Privacy Policy (as defined below) or misuse of personal information of any customer or guest, or prospective customer or guest.

Tour Operator will also reimburse Hotel for all payments of money (including without limitation, all costs, expenses, fines, damages, legal fees, court costs, settlements, judgments, etc.) incurred by Hotel to defend and protect itself from, or to remedy, defaults of Tour Operator. Tour Operator, however, is not required to indemnify Hotel for damages caused by or resulting from the sole proven negligence or willful misconduct of Hotel.

14. Confidentiality

Each party must keep confidential all terms and conditions of its relationship with the other party. Under no circumstances should the terms of this Agreement (including Exhibit A) be disclosed by either party to Tour Operator's customers. In addition to, and not in lieu of, any Confidentiality Agreement the parties may have executed, each party agrees to keep confidential the other party's business, including but not limited to sales, customer information, other proprietary information, and all data and other information that is designated as confidential. Information that is designated as confidential includes, without limitation, the following: (a) business, strategic development, financial, and marketing plans of both parties; (b) customer lists, sales plans, research, and market share information; (c) any information designated, orally or in writing, by either party as confidential (hereinafter, "Confidential Information").

Each party agrees not to use, sell or otherwise make Confidential Information available to any third parties.

Each party shall restrict all Confidential Information to employees or agents on a "need to know" basis, shall inform employees and agents of the confidentiality requirement, and shall take reasonable precautions to prevent any disclosures. For information that meets the applicable definition of a trade secret and retains trade secret status under applicable law, this obligation shall survive the termination of this Agreement. For all other Confidential Information, this obligation shall survive the termination of this Agreement for a period of two (2) years.

15. Privacy

Tour Operator shall adopt, and shall publish with every transaction or potential transaction with a customer or guest, or prospective purchaser or guest, ("Customer"), a Privacy Policy, governing the use of that Customer's Personal Information (the "Personal Information"). Tour Operator shall strictly comply with the terms of that Privacy Policy, and shall be solely liable for any violations of it. Said Privacy Policy shall be compatible with the following prohibition:

Tour Operator shall not use, sell, loan, rent, or otherwise enter into any transaction regarding any name or personal data related or relatable to any name of any Customer, derived from such Customer's use, purchase, or viewing of any goods or services offered or provided to any such Customer by way of this Agreement, to any third party, except as such Customer may agree in advance in writing or by "check-box" approval on-line, with respect to Customer's personal information. Tour Operator shall keep and maintain any records relating to such approvals for a period of no less than one year following the expiration of the term hereof.

16. Force Majeure

The performance of this Agreement by either party is subject to Acts of God, War at any time 30 days prior to Customer's arrival date, disaster, strikes, civil disorder within twenty (20) miles of the Hotel, curtailment of transportation facilities, or any other emergency making it illegal or impossible to provide the facilities. This contract may be terminated without a cancellation charge for any of the above reasons by written notice from one party to the other.

17. Non-Exclusive Arrangement.

Hotel is not required to work with Tour Operator exclusively with respect to the subject matter of this Agreement.

18. Compliance with Law

Tour Operator shall, at its own expense, comply with all applicable national, federal, provincial, state, county and local laws, ordinances, regulations and codes in its performance of this Agreement. Tour Operator is registered where required and will file and pay all such taxes that may arise as a result of guests' payment to Tour Operator.

19. Successors and Assigns

The two parties acknowledge and agree that this Agreement shall be binding upon and inure to the benefit of the parties' successors or assigns.

20. Assignment

Any assignment or transfer of this Agreement by Tour Operator, in whole or in part, or of any interest herein, without Hotel's prior written consent shall be void. Hotel may assign this Agreement to a parent, subsidiary, or affiliate corporation without notice as long as the assignee corporation assumes full responsibility for the rights and obligations under this Agreement.

21. Amendments

This Agreement may not be amended except by a writing executed by authorized representatives of each party. The waiver of any terms of this agreement for one particular occasion shall not be deemed as a waiver of such terms for any future occasions. Any such waiver is at the discretion of the hotel.

22. Governing Law.

This program shall be governed by and construed in accordance with the laws of country in which the Hotel is located. In the event of a dispute, and prior to filing any litigation, the parties agree to discuss in good faith the possible utilization of alternative dispute resolution procedures, including, but not limited to, non-binding mediation.

23. Ownership or Marks

Intercontinental Hotels Group plc and its affiliates ("IHG") own many trademarks, including "HOLIDAY INN", "HOLIDAY INN EXPRESS", "HOLIDAY INN RESORT", "HOLIDAY INN SELECT", "HOLIDAY INN CLUB VACATIONS", "CROWNE PLAZA", "INTERCONTINENTAL", "STAYBRIDGE SUITES", "CANDLEWOOD SUITES", "HOTEL INDIGO", "PRIORITY CLUB", "EVEN", "HUALUXE", "STAY SMART", "IHG" and many other trademarks, as well as trade names and logos and domain names associated with all of those trademarks (the "Marks"). The Operator shall not use any of the Marks, nor any adaptation or variation thereof, in any manner whatsoever, without the prior written consent, in each instance, of IHG. The Operator will take no actions that are adverse to IHG's ownership rights in the Marks. The Operator shall not use or register any domain name that is identical to or confusingly similar to any of the Marks. Upon termination of this Agreement, The Operator will immediately cease use of any and all such Marks.

24. Internet Keyword Marketing

The Operator shall not purchase an advertising or sponsorship position triggered by the Marks, or any word or phrase confusingly similar to the Marks, in connection with paid online search or with respect to any top level domain. In addition, The Operator shall use commercially reasonable methods to prevent the Marks from being displayed when a user types such Marks in as part of a search. This includes the Distributor providing to Google a negative keyword list consisting of the Marks, and using Yahoo!Bing's program that permits presentation of a list of terms to exclude from The Operator's list of keywords, and any other option offered by an online marketing vendor that would permit The Operator to present a negative keyword list containing the Marks

25. Brand Loyal Marketing

The Operator shall not target, solicit, or otherwise make use of any data made available to it as a result of this agreement to offer business related to hotels not in IHG's system to IHG-brand loyal customers (i.e., customers expressing a preference for an IHG brand).

26. Onward Distribution Principles

The Operator may offer or further distribute the hotel inventory to consumers online through any consumer-facing internet site or other consumer-facing distribution system provided such hotel inventory is distributed or offered as a packaged room of which the room element does not constitute more than 60% of the total packaged price and whereby the net rate is not discernible by the consumer.

Without limiting the foregoing, The Operator may offer or further distribute the hotel inventory to third parties, regardless of the channel used to offer or distribute such hotel inventory. In the event such hotel inventory is distributed to third parties online over the internet, all access to such internet site(s) shall be password protected and restricted to third parties.

In the event that The Operator distributes its Hotel Inventory to a third party, The Operator will ensure that any such third party adheres to these onward distribution principles, and that any third party will ensure that any subsequent third party adheres to these onward distribution principles.

These confidential rates offered to The Operator are not for use via the Internet for any form of direct selling. Should these contract rates be used on the internet, the rates must be packaged with air tickets and other tours and sightseeing arrangements. This is to ensure the nightly accommodation rates are not revealed to the public. If this is not adhered to, The Hotel reserves the right to withdraw the rates from your company or organization without any prior notice

27. Best Price Guarantee

Distributor acknowledges that IHG operates a Best Price Guarantee in relation to the sale of the hotel inventory ("BPG"). In respect of any breach by The Operator or any Third Party of the Onward Distribution Principles (which may or may not result in a Verified BPG claim) The Operator shall be liable by way of liquidated damages within 30 days of receipt of a demand for payment for:

- (i) a fixed administration cost at the prevailing rate, as notified to The Operator from time to time, in respect of administration costs incurred in performing the verification/investigation process and identifying the source of breach of the Onward Distribution Principles;
- (ii) the cost of any non-cancellable test booking made in performing the verification/investigation process and identifying the source of the breach of the Onward Distribution Principles; and
- (iii) in the case of a verified BPG claim, an amount equal to the costs paid to the customer making the claim.

The parties acknowledge and agree that the amounts payable pursuant to this Section represent a genuine pre-estimate of loss.

HOTEL NAME (Full official name):

INTERCONTINENTAL SAIGON

OWNER ENTITY (Legal name):

Saigon Boulevard Complex Co., Ltd

NAME:

TITLE:

SIGNATURE:

DATE:

TOUR OPERATOR:

TOUR OPERATOR REPRESENTATIVE: **365 TRAVEL**

NAME:

TITLE:

SIGNATURE:

DATE:
